

Form No: HCJD/C-121

ORDER SHEET

IN THE LAHORE HIGH COURT,

BAHAWALPUR BENCH, BAHAWALPUR.

JUDICIAL DEPARTMENT

Crl. Misc. No.4457-B of 2025

Shah Nawaz.		VS.	The State and another.
S.No. of order/ proceeding	Date of order/ proceeding.	Order with signatures of Judge, and that of parties or counsel, where necessary.	

<u>15.01.2026</u>	Syed Zeeshan Haider, Advocate with the petitioner. Jam Waheed Ahmad Bobra, Deputy District Public Prosecutor with Abdul Majeed Awan, Assistant Director Legal, Anti-Corruption Establishment. Malik Abdul Rasheed Rashid, Advocate for the respondent No.2/complainant.
-------------------	--

Through this petition filed under section 498 Cr.P.C. the petitioner namely Shah Nawaz, seeks pre-arrest bail in case F.I.R No.14 of 2024, dated 15.06.2024, registered in respect of offences under sections 409, 420, 468 and 471 P.P.C read with Section 5 of the Prevention of Corruption Act (Act No.II) of 1947 at Police Station Anti-Corruption Establishment, Rahim Yar Khan.

2. The allegations against the petitioner, culled from evidentiary material produced before the Court, are that he along with his co-accused, got issued the copy of the record of rights wherein, he was mentioned as being the owner of 16-kanals of land whereas, according to the record, he was the owner of only 4 *Kanals* and 17 *Marlas* of land and thereafter, after procuring the said record of rights, he successfully sold the said land to the complainant of the case and thus, cheated him out of a huge amount.

3. I have heard learned counsel for the petitioner, the learned Deputy District Public Prosecutor, the learned counsel appearing

on behalf of the respondent No.2/complainant and have perused the record with their able assistance.

4. This is a pre-arrest bail petition and only a tentative assessment of the evidentiary material produced before the Court is to be made at this stage. A perusal of the record reveals that the allegation against the petitioner is with regard to the selling of land measuring 16-kanals, though he was not even the owner of the such parcel of land, rather he was the owner of 4 Kanals and 17 Marlas of land, however, in the F.I.R itself, it has been mentioned that the sale agreement which took place between the petitioner and the complainant of the case, was based on the copy of the record of rights as issued by the *Naib Tehsildar* and verified by *Irshad Patwari* wherein, it had been mentioned that the petitioner was the owner of 16-kanals of land in the said *khata*. This very fact that the sale agreement as executed between the petitioner and the complainant of the case was based upon the copy of the record of rights as issued by the Naib Tehsildar and verified by the Patwari, makes the case of the petitioner requiring further inquiry and probe in the manner that there is no allegation against the petitioner that he *himself had forged the copy of the record of rights* which reflected him wrongly to be the owner of 16-kanals of land rather that allegation of forging the said copy of record of rights has been alleged specifically against the revenue officers i.e, Irshad Patwari (since dead) and Naib Tehsildar. When the prosecution case is silent with regard to the part played by the petitioner in the preparation of the copy of the record of rights which wrongly showed the petitioner to be the owner of 16-kanals of land, then, the liability of the petitioner for the offences under sections 468 PPC. becomes one of further inquiry and probe. Obviously, the petitioner was not in possession of the revenue record and had no control over the same and it is also admitted that the copy of the record of rights, which was issued by the revenue authorities reflecting the petitioner to be the owner of 16 kanals of land, was not in any

manner made by the petitioner within the meaning of section 464 PPC. The learned counsel appearing on behalf of the respondent No.2/complainant is right in his stance that the petitioner has indeed cheated the complainant of the case out of huge amount and used as genuine the forged copy of record of rights however, that act of the petitioner comes within provisions of cheating for inducing delivery of any property and using as genuine a forged document which is known to be forged. made punishable under sections 420 and 471 PPC, which offences are *bailable* as per Schedule-II of the Code of Criminal Procedure, 1898. For the fact that the liability of the petitioner for the other offences is yet to be determined and for the fact that presently, the evidentiary material available with the prosecution is reflective of the commission of offences under sections 420 and 471 PPC by the petitioner, therefore, in the circumstances, no useful purpose would be served by sending the petitioner behind the bars. It is also a stance of the petitioner that actually, he only was the owner of 4-kanals and 17-marlas of land in the particular *Khata* and did not know that the copy of the record of rights which was being issued reflected him to be the owner of 16-kanals of land related to one *Khata* or related to any other *Khata* also. The Investigating Officer of the case submits that investigation is to be conducted from the petitioner so as to determine as to how much illegal remuneration he had given to the revenue authorities for procuring the copy of record of rights however, admittedly, Irshad *Patwari*, who had prepared the said copy of record of rights, has died whereas, Naib Tehsildar who had issued the said copy, stands paralyzed therefore, not much purpose would be served by sending the petitioner behind the bars. All these facts make the case against the petitioner necessitate further inquiry and probe as to whether the petitioner was involved in the commission of the offences being investigated and if he was, to what extent. The Investigating Officer of the case has verified the versions of the petitioner as well as the complainant during the

investigation of the case. The liberty of the citizens has always been jealously guarded by the Courts of law. The assertion that the involvement of the petitioner in the case is based on *mala fide* and malicious intent, is an assertion that cannot be said to be without substance or foundation at this stage. Sending the petitioner behind bars at this stage would serve no useful purpose. Reliance is placed on the case of Khalil Ahmad Soomro and others v. The State (PLD 2017 SC 730) wherein the following principle has been enunciated:-

“Although for grant of pre-arrest bail one of the pre conditions is that the accused person has to show that his arrest is intended by the prosecution out of mala fide and for ulterior consideration. At pre-arrest bail stage, it is difficult to prove the element of mala fide by the accused through positive/solid evidence/ materials and the same is to be deduced and inferred from the facts and circumstances of the case and if some events-hints to that effect are available, the same would validly constitute the element of mala fide.”

5. In view of the above discussion, this petition is **allowed** and ad-interim pre-arrest bail already granted to the petitioner namely Shah Nawaz, by this Court, *vide* order dated 17.10.2025 is confirmed subject to his furnishing of fresh bail bonds in the sum of Rs.200,000/- (Rupees two hundred thousand only), with two sureties, each in the like amount, to the satisfaction of the learned trial court.

6. It is clarified that the observations enumerated are absolutely tentative in nature and restricted only to the extent of these particular petitions, having no nexus and relevance with the trial, which shall be concluded quite independently and purely on merit.

(SADIQ MAHMUD KHURRAM)
JUDGE

Approved for Reporting

Judge